

Ryan C. Cadwallader (Utah Bar No. 13661)
KIRTON McCONKIE
36 S. State St., Ste. 1900
Salt Lake City, Utah 84111
Telephone: (801) 328-3600
rcadwallader@kmclaw.com

Attorneys for Respondent Paul Knott

FEDERAL MARITIME COMMISSION

WCG GROUP, LLC, dba Aitoh Co., Claimant, v. CHRIS PHILLIPS, and individual, and PAUL KNOTT, and individual, Respondents.	RESPONDENT PAUL KNOTT'S ANSWER TO SMALL CLAIMS COMPLAINT Docket No. 1999(I)
---	--

Pursuant to the Rules of Practice and Procedure under 46 C.F.R. § 502 *et. seq.*, including § 502.312, Respondent Paul Knott, by and through counsel, hereby answers the Small Claims Complaint filed by WCG Group, LLC dba Aitoh Co. (“Claimant”) by admitting, denying, and affirmatively averring as follows:¹

FIRST DEFENSE

1. Respondent is without information or knowledge to admit or deny the allegations in paragraph I of the Complaint. Therefore, deny.
2. Respondent denies the allegations in paragraph II of the Complaint.

¹ On the same date of this Answer, Respondent also filed an Affidavit of Respondent Paul Knott of Non-Consent For Formal Adjudication as required under 46 C.F.R. § 502.304(e). The Respondent does not consent to the informal procedure.

3. Paragraph III of the Complaint calls for a legal conclusion to which no response is required, therefore deny.

4. Paragraph IV of the Complaint included no allegations. Therefore, deny.

5. Paragraph V of the Complaint calls for a legal conclusion to which no response is required, therefore deny.

6. Paragraph VI of the Complaint calls for a legal conclusion to which no response is required, therefore deny.

7. Paragraph VII of the Complaint calls for a legal conclusion to which no response is required, therefore deny.

FIRST AFFIRMATIVE DEFENSE

Claimant's claims against Respondent Paul Knott fail to state a claim for which relief can be granted. *See* separately filed Memoranda in Support of Dismissal of Complaint against Respondent Paul Knott ("Memoranda").

SECOND AFFIRMATIVE DEFENSE

Claimant has no privity of contract with Respondent Paul Knott.

THIRD AFFIRMATIVE DEFENSE

The Claimant claims are barred in whole or in part as Claimant's failure to mitigate their damages, if any.

FOURTH AFFIRMATIVE DEFENSE

The Claimant's claims are barred in whole or in part by the relevant statute of limitations, including 46 C.F.R. § 502 et. seq. and 46 C.F.R. § 502.302(a).

FIFTH AFFIRMATIVE DEFENSE

The Claimant's claims, or some of them, are barred by the economic loss doctrine.

SIXTH AFFIRMATIVE DEFENSE

The Claimant's claims are barred by the doctrine of offset.

SEVENTH AFFIRMATIVE DEFENSE

The Claimant's claims are barred by the doctrine of consent, approval, or waiver.

EIGHTH AFFIRMATIVE DEFENSE

The Claimant's claims are barred by the failure to include an indispensable party to the Complaint, including, among others, Ocean Network Express Pte. Ltd., Ex-Freight Zeta Inc., and Forin Container Line.

NINTH AFFIRMATIVE DEFENSE

The Claimant's complaint lacks subject matter jurisdiction.

RESERVATION OF RIGHT TO ASSERT

Respondent Paul Knott reserves the right to assert additional defenses and claims to the extent such become known as a result of discovery or otherwise.

PRAYER FOR RELIEF

WHEREFORE, Respondent Paul Knott demands relief as follows:

- A. For an order dismissing each and every claim for relief in the Complaint with prejudice and on the merits;
- B. For Respondent's attorney fees and costs to the extent permitted by contract and/or at law; and
- C. For such further legal and equitable relief deemed appropriate.

DATED this 26th day of December, 2023.

KIRTON McCONKIE

/s/ Ryan C. Cadwallader

Ryan C. Cadwallader

Attorneys for Respondent Paul Knott

CERTIFICATE OF SERVICE

I hereby certify that I have this 26th day of December, 2023 served the foregoing document upon the below parties of record as follows:

WCG Group, LLC dba Aitoh Co. (U.S. Mail & Email)
2720 Mountain Pine Rd.
Hot Springs, AK 71913
Claimant
carlo@aitoh.com

Chris Phillips (U.S. Mail)
16 Robin Ln
Wappingers Falls, NY 12590
Respondent

/s/ Ryan C. Cadwallader
Ryan C. Cadwallader
Counsel for Respondent Paul Knott